

"Is Contraception a Life-Issue?"

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That there is a strong conceptual link between contraception and what some have called the "life-issues" of abortion, infanticide, and euthanasia has been argued by a number of contemporary ethicists. There have, of course, been Roman Catholic voices, arguing that contraception is a grave moral error. Of considerably more influence have been those ethicists who have argued that pro-life positions on abortion, infanticide, and euthanasia commit their adherents to the moral impermissibility of contraception, as well. These ethicists--for example, Michael Tooley, Peter Singer, and more recently Alastair Norcross in reply to Don Marquis' pro-life article in the *Journal of Philosophy*¹--have taken the connection between abortion, say, and contraception, to constitute something of a *reductio* argument against pro-life positions, since practically nobody, at least since *Griswold v. Connecticut*, takes contraception to be a moral issue.

In what follows I will argue that contraception is indeed intimately connected with the issues of abortion, infanticide, and euthanasia, but that the conclusion to draw is that contraception is also morally impermissible. To show this, I will present an account of what it means to respect the sanctity of human life, and show that contraceptive intentions undermine that respect. The argument will be followed by a discussion of its implications for the pro-life agenda.

¹ See Michael Tooley, "A defense of Abortion and Infanticide", *Philosophy and Public Affairs* 2, 1972, pp. 137-165; Peter Singer, "Unsanctifying Human Life", in *Ethical Issues Related to Life and Death*, ed. John Ladd; (New York: Oxford University Press) 1979; and Alastair Norcross, "Killing, Abortion, and Contraception: A Reply to Marquis" in *Journal of Philosophy*, LXXXVII, 5, 1990, p. 268-277.

I

Human life is of incomparable worth. "You can't place a value on a human life", we have heard, and have come to believe. We have some idea of what we think these familiar phrases mean. One shouldn't treat human beings as if they were only so valuable, of only so much worth, such that they might be merely used, sold to obtain something we valued more. But what is it, exactly, to value a human being in a way which precludes us from selling one?

A good place to begin in analyzing the incomparable worth, or dignity, of human life is by considering an analogy with something whose worth is more easily analyzed. If a person owned an automobile which was simply more valuable to him or her than *anything* for which it might be traded, we might say that the car had incomparable worth for its owner, or that it was beyond price. Suppose we try to understand the incomparable worth of human beings along the same lines. Suppose we thought that human beings were wonderful; imagine we just couldn't get enough of them. Peter Singer seems to have had in mind, and rejected, some similar model for understanding not the worth of *human* life--Singer is no speciesist--but of rational, self-conscious life, when he wrote that

"... relatively few of us, I think, value the existence of rational, self-conscious beings in the sense that the more of them there are, the better we think it is. If we did value the existence of rational self-conscious beings in this way, we would be opposed to contraception, as well as abortion and infanticide, and even to abstinence or celibacy. But most of us think that there are enough rational, self-conscious beings around already . . ."2

Perhaps we all find some affinity with Singer's intuitions: often we find that there are enough people around already. And not only with regard to quantity, but also

² Peter Singer, "Unsanctifying Human Life", p. 50-51.

with quality, do we impose limits. Few of us seek to fill our banquet rooms with just anyone. There are many things about human beings which we do not value, at all, yet alone value supremely: human beings can be cruel, selfish, arrogant, ignorant, and the like. But we are not seeking an analysis of what makes a human character trait valuable; we are considering the value of human life itself. How do we understand the value of living, of being?

What about human life makes it a good, valuable, or worthwhile thing to be a human being? A hard question, this. Perhaps we should try an easier one: what makes it a good and worthwhile thing to be, say, an engineer? Easy, as anticipated. Engineers can do all sorts of really neat things; they can design efficient, useful and beautiful products which serve important human needs; they can safeguard the public health, safety, and welfare, contributing to and preserving public trust; they can work on fascinating problems in ways which provide a sense of challenge, of accomplishment, and of camaraderie, etc. It is good to be an engineer, because it is good to be able to do a wide range of things which being an engineer enables one to do. Being trained as an engineer is both instrumentally valuable for the attainment of these excellent goals, as well as valuable as an end, since it is an *admirable* thing to achieve excellence in these aspects of engineering practice, and thus to be able to achieve these excellences.

I want to urge that the sense in which human life is of incomparable worth is analogous to the noninstrumental sense in which it is good to be an engineer, or poet, or philosopher, or parent. Being a human being is a noble thing, because of the excellent modes of life which are possible for human beings. Since it is a good and excellent thing to live as a friend, it is a good and excellent thing to be the kind of thing which has the potential to live as a friend. How excellent a thing it is to be a

human being is measured, then, by the variety of good ways there are to live human life. The possibilities for living human life well are endless, though, and thus how good it is to be a human being is not measured by any particular good of human life, nor even by any finite set of such goods, such as a single human being might experience in a lifetime. The worth of human life is measured by all that is possible for human beings, and is incommensurate with the particular goods of human life, even while human potential for obtaining those particular goods is the reason it is a noble thing to be a human being.

The sense in which human beings are of incomparable worth, then, is not the sense in which being a human being is of instrumental value for the obtaining of the goods of a particular life. Being a human being is of course valuable in that sense. But the goods of a particular lifetime are finite³, and so therefore is the value of a particular continued human existence, as is testified to by the universal human experience of giving even one's own life for a higher cause. It is rather insofar as we appreciate the excellence of the full range of possibilities for human life, that we esteem as beautiful, as excellent, that principle of organization in virtue of which these possibilities are ours. The range of human possibilities is indefinitely larger than any particular set of goods, however, and thus the significance of being a human being--the value of human life, considered as an end--is not measurable in terms of any finite set of such goods.

It is worth mentioning in passing that this distinction between the instrumental value of human life, and its value as an end, enables us to see clearly that the dignity of human beings is ill-served by the so-called argument for potential, on

³ Here, as elsewhere, I am abstracting from theological considerations which might prove to be controversial among this paper's readers.

which the worth of human beings in pre-natal stages of development is affirmed in virtue of their potential to acquire some particularly wonderful valuable feature in the future. From the moment at which the principle of organization which specifies a human being is embodied in a particular spacio-temporal instance--which is, as far as I can tell, at conception--the being developing there is *actually* the thing which is of incommensurable worth: it is a thing whose worth lies in the excellence of its kind, which in turn lies in the excellence of the endless variety of the modes of activity which are possible for things of this, human, kind.

If anyone has doubts that modes of activity which are not among an individual's own possibilities are relevant to the significance or worth of that individual, the following reflections should cure them. Imagine a person who comes late in life to appreciate musical genius, and comes to realize that at least in large part musical ability--even genius--is a learned characteristic. Suppose that person came to think that, had she been provided with the right kinds of encouraging experiences as a child, she too might have developed a significant musical gift, far beyond that which she currently has the potential to develop. Such a person, in coming to appreciate musical modes of life which are now beyond her potential, might--rightly--suppose that she is learning something about herself, about how she might have been. How significant a thing it is to be what she is, is measured in part by the significance of those aspects of her being in virtue of which she is able and might have been better able to participate in musical modes of life. Those potentialities which were precluded from actualization by understimulation early in life are relevant to her appraisal of the excellence of being the thing whose potentialities they were. In the same way, those human potentials which were precluded from actualization by the accidental formation of her particular genetic structure are also relevant to the significance of being what she is. Human beings are essentially individuals, but not

essentially any particular individual. The limitations on the actualization of human potential imposed by the particularities of an individual existence are as accidental to human beings as are those limitations imposed by the particularities of an individual's upbringing. Just as I learn something about myself when I learn what I might have done, but for accidents of environment, so do I learn something about myself--about what I am, and the significance of what I am--when I learn what ~~I might have done, but for accidents contributing to my individuality.~~ ^{any human being} ^{the} ^{of human individuation.} So it is the whole impressive array of potential modes of human existence which is the basis of the worth of each individual human life.

I am advocating an interpretation of the worth of human life which is almost precisely the sense Singer meant to parody in the article--aptly titled "Unsantifying Human Life"--from which I quoted earlier. Human beings--including rational, self-conscious ones--have worth because they are the beautiful kind of thing they are; thus it is true that, other things being equal, the more of them there are, the better it is. In life as we know it, however, other things never are quite equal when more people are around. Many of the unspeakably important potentialities, on account of which human life has worth, are affected by how many human beings are around, and at what times. Respect for the sanctity of human life entails concern that human beings attain the particular goods of human life, since that respect only arises out of the recognition of the importance of these goods. So rightly do we restrain our pursuit of new human life in accord with appropriate concern for the wellbeing of both existing and future human life. This restraint provides no evidence whatever that few of us value human beings in the sense that the more of them there are, the better we think it is. Human life is precious because human beings are precious, and each of us is a profoundly wonderful thing, even while our

attainment or lack of attainment of important human goods marks our mode of existence as triumphal or tragic.

II

Human beings are beautiful, wonderful things, then, because they are the kind of things whose principle of organization makes possible for them a beautiful and wonderful array of modes of life, in some very small measure of which each human being can participate. Human beings can grow to appreciate modes of being human which are far beyond their individual potentialities, though, which appreciation is itself among the most excellent of modes of life. Those whose appreciation for human life grows in this way arrive at a position to judge that because of the real and infinite potentialities of human existence, being a human being is a wonderful thing, and the worth of a human being is not comparable to the worth of any finite set of potential modes of human existence.

It is the incomparable worth of human life in just this sense which is denied in acts of abortion, infanticide, and euthanasia, the "basic life issues". For in all cases of these kinds, the worth of a human being is measured against some set of goods whose attainment is among the particular modes of living human life, and these latter goods are judged to be preferable to the existence of the life in question. I will argue that the same judgement is rendered in acts performed with contraceptive intent, and suggest that on that account contraception has as strong a claim to the title of "basic life issue" as do abortion, infanticide, and euthanasia.

Any contraceptive act is always undertaken for some reason, in pursuit of some particular set of perhaps very important goods--say, the physical or psychological health of the mother, or of the potentially conceived human being. In acts performed with contraceptive intent, that outcome in which those goods constituting the reason for contracepting are obtained is judged preferable to that outcome in which a being of incomparable worth comes into existence. When phrased in this way, the devaluing of human life in acts performed with contraceptive intent seems evident. But this talk of incomparable worth and preferred outcomes is abstract; let us consider the reality of contraception in a more accessible manner.

Consider what occurs in cases where our contraceptive acts fail. Among the results, in such cases, is the existence of a new life, which we had tried to prevent. What, now, will be our attitude toward this new life--what shall we say of it? We could--and often do--call him or her a mistake. We regret having failed in our contraceptive attempt; we regret conceiving. This regret of ours is one to which the technology and social structures of our day provide a remedy. One might at this point turn our discussion to the psychological connection between contraceptive mentality and abortion, but I am not convinced that doing so would be the most profitable use of our time. After all, we are a pro-life community, united in our conviction that in cases of failed contraception, respect for the sanctity of human life requires us to forgo pursuit of the goods for which we contraceived, though they may be yet in reach.

In cases of failed contraception, we accept what we affirm to be the new human life, the conception of which--I should say, whose conception--resulted from our failure at successful contraception. We accept this new life, under one of two conditions.

Either we continue regretting having conceived the child, but accept the child anyway, or we change our minds, and no longer regret having conceived. And surely acceptance under the latter condition is called for, though all of us would be understanding if a significant time to make the adjustment in attitude were needed. But could we imagine raising a child we regretted the whole time having conceived? Once we got to know this child of ours, wouldn't we look back and say: I am glad that this child was conceived--even, and this is harder, this handicapped child of mine--because this human life is worth the sacrifice initiated by his or her conception and required for his or her care. How many of us *have* children whom--without yet knowing them, of course--we tried to prevent from being conceived? Can we be anything but glad that contraception failed? Thus, at some point after failed contraception, respect for the worth of the human being conceived requires a change in our attitude, from one of regret to one of welcome.

The question now presents itself: if after failed contraception our attitude toward the newly-conceived human life stands in need of change, wasn't it in need of change in the first place? If it will be better, when contraception fails, that it failed, wouldn't it have been better for contraception never to have been attempted?

A first response is a simple "no". New situations call for new attitudes, and the conception of a human life changes the picture, one might argue. But while conception does indeed change the situation, it does not change the picture. The picture was entirely clear from the beginning. It was always clear that it was a human being whose conception was at issue. Supposing some person had inadequately reflected on that fact, let us chalk up the first case to ignorance and consider the case of a person's confronting the choice to contraceive a second time, after the first failure, after the first conception. Now we know what is at issue; the

conception of a second child, equal in worth to the incomparably valuable first child, a second child worth the sacrifice of any measure of the particular goods of human life, goods of the kind for which contraception was first attempted, an attempt whose failure resulted in the conception of the child whose worth we now admit outstrips the worth of those goods whose attainment was a casualty of the initial failure to contraceive.

There is a contradiction, here, which can be made plain: it is both better and not better to conceive, because those goods we pursue in contraceiving are both more valuable--as we affirm when we contraceive--and less valuable--as respect for life prompts us to affirm when contraception fails--than the life which would result were we not to contraceive. An evaluation we affirm in contraceptive practice, we abhor in the treatment of human beings--notably in acts of abortion, infanticide, and euthanasia-- once they are conceived. The pro-life movement needs to make up its mind.

III

The choice for a consistent affirmation of the sanctity of human life in the sense I have described entails some sacrifice. Many in the pro-life movement have become familiar with the sacrifices entailed by the respect for life in cases where abortion, infanticide, and euthanasia are at issue; the sacrifices entailed by a refusal to participate in the contraceptive mentality of our society are less commonly known. In order to more clearly assess the impact of these sacrifices, let us begin by removal of a certain confusion.

Among the things whose sacrifice is *not* entailed by a refusal to contraceive born of a respect for the sanctity of human life are effective family planning and sexual relations aimed solely at the good of spousal intimacy. Consistent respect for the sanctity of human life does entail restrictions on how these goods may legitimately be pursued, however.

Since contraceptive intention denies the incomparable worth of the life which might otherwise be conceived, no actions done with the intent to prevent conception are consistent with upholding the sanctity of human life. Refraining from sexual relations, though, involves no contraceptive intent. The distinction at work here, I will argue, is no mere smoke-screen thrown down by sloppy scholasticism. To intend to prevent conception is to prefer the goods which motivate the contraceptive act to the good of the new life which would otherwise result, and to do so is to *deny* the incomparable worth of human life. To merely refrain from sexual relations and thus from conceiving, on the other hand, is *merely not to affirm by pursuit* the incomparable worth of all human life, including new life.

There is a clear and relevant distinction between this denial, and this mere lack of affirmation. Constant affirmation of the good of new life is not physically possible for human beings. Moreover, attention to the needs of existing and potentially existing human beings--attention motivated by the concern which is logically inseparable from upholding the sanctity of human life--places further restriction on our pursuit of the good of new human life. But a consistent refusal to deny the incomparable worth of new human life is entirely possible, and is not only consistent with but required by affirmation of the sanctity of human life, as has already been shown. One cannot constantly pursue any particular good, but one can

constantly refuse to treat it as less than it is. So while Peter Singer was right to connect the affirmation of the worth of human life with the pursuit of conception, he showed insufficient care in concluding that a prohibition of abstinence and thus celibacy were likewise entailed.

While abstinence of some sort is at times permitted and at times required by respect for the sanctity of human life, there are other times at which it can be reasonably clear that in any case conception will not occur. During such times, pursuit of other goods through sexual relations need not involve denial of the incomparable worth of human life. Thus, neither sacrifice of sexual activity under infecund circumstances, nor of effective family planning are entailed by a consistent affirmation of the sanctity of human life.

Affirmation of the sanctity of human life does entail that such goods as spousal intimacy and sexual pleasure not be pursued in a way which denies the incomparable worth of human life. Under many different kinds of circumstances, this constraint can pose real hardships. Pursuit of any important value entails constraints, and tough choices emerge when that pursuit clashes with the pursuit of other important values. Freedom-fighters, whistle-blowers, and martyrs all have lived at the intersection of at least two such conflicting pursuits. The difficulties which arise out of such clashes are the mills in which virtue is ground. Virtue requires the embracing of such difficulties, and is strengthened through them.

The pro-life movement has long recognized the very real hardships which arise when the affirmation of the dignity of human life clashes with the pursuit of other important human values: we recognize the shame and confusion involved in conception under inauspicious circumstances; the tangled sentiments of the parents

of hopelessly deformed newborns; the agonizing decisions facing the families of lingering and suffering senior citizens. Rightly do we call for heroic virtue in the face of these difficulties, willing to help bear them ourselves and confident that a consistent and thoroughgoing choice for life promotes the best outcomes for all concerned. This confidence we maintain squarely in the face of our recognition that a great many difficulties could be avoided by less zealous affirmation of the dignity of human life. We can avoid the difficulties which will accompany the rejection of contraceptive mentality, but if such rejection is required by respect for the sanctity of human life, our easier lives will be poorer for it.

I believe and have tried but briefly here to show that a consistent affirmation of the sanctity of human life is inconsistent not only with abortion, infanticide, and euthanasia, but also with any actions undertaken with contraceptive intent. If this conclusion is correct, then the pro-life movement must recognize itself to be at something of a crossroads, one at which a new level of sacrifice is called for. Consistent respect for the sanctity of human life requires of the pro-life movement a rejection of the prevailing contraceptive mentality, and the embracing of two sorts of sacrifice. At a more personal level, rejection of contraception will likely require a new moderation of our own pursuit of sexual expression and spousal intimacy. As difficult as that personal moderation may prove to be, more difficult still will be the embracing of the public ridicule and the temporary loss of political advantage which association with the slightest public scrutiny of the moral permissibility of contraception will almost surely bring. Even if for a variety of reasons--some of which are readily apparent--the opposition to contraception does not extend to the point of advocating its legal prohibition, the political cost of consistency will be high.

In spite of the initial cost, by radicalizing the pro-life agenda to include affirmation of the moral impermissibility of contraception the pro-life movement can grow in the strength born of consistency of vision and the willingness to lead. Moreover, in our rejection of the devaluing of human life implicit in contraceptive practice, the virtue of respect for the incomparable worth of all human life will be nurtured steadily in the lives of pro-lifers. For our consistent affirmation of the sanctity of human life will be tried in fire ignited by the friction between that affirmation and the prevailing contraceptive culture. The respect for life purified in that fire will lead to heightened concern that all human beings attain a rich measure of the variety of the goods in which our common human nature equips us to participate. That heightened concern for all human beings will lead to more effective action on their behalf. As others are helped to partake in some rich measure of the goods of human life, and especially in the good of genuine concern for others modelled in our willingness to sacrifice a large measure of our own comfort for their basic needs, they will grow in the appreciation of the worth of human life on the level at which the hard choices of life are made.

Love is the heart of the pro-life agenda. Love is nurtured by ever-deeper appreciation of the worth of human life. Contraceptive practice undermines that appreciation in daily life, just as the theoretical acceptance of contraception undermines the consistency of pro-life analysis. On both a personal and theoretical level, then, the pro-life movement should recognize that contraception is indeed a life-issue.

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